

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-21

MSRF, Inc.
v.
YANG MING MARINE TRANSPORT CORPORATION

RESPONDENT’S MOTION FOR RECONSIDERATION

Respondent Yang Ming Marine Transport Corporation (“Respondent”), through its undersigned counsel, hereby moves for reconsideration of the Presiding Officer’s March 20, 2023 Order (“Order”), setting the due date for Respondent’s Opposition Brief to June 2, 2023. Although Respondent believes the Presiding Officer has treated the Parties in a less than evenhanded manner – here by extending the time available for Complainant to prepare its initial brief while effectively reducing the time for Respondent to respond, the main ground is that Counsel for Respondent cannot prepare a competent brief in the period allotted consistent with maintaining personal health.

Consultation

As required by Rule 71, Respondent’s Counsel conferred with Counsel for Complainant regarding this motion and Counsel for Complainant advises that MSRF, Inc. continues to support the request for a revised schedule as proposed in its motion dated March 16, 2023.

Argument

1. Standards for Reconsideration. The FMC's Rules do not specify any standards for reconsideration of interlocutory orders by the Presiding Officer (although they do for reconsideration of final Commission orders). Accordingly, Presiding Officers have substantial authority to flexibly reconsider their decisions prior to issuance of the Initial Decision. See, discussion in Respondent's Motion of December 13, 2023 at 3-4 (citing *Tractors and Farm Equipment, Ltd v. Waterman Steamship Corp.*, 25 F.M.C. 375, 377 n. 9 (FMC 1982); *Carolina Marine Handling, Inc. v. South Carolina State Ports Authority*, 2002 FMC Lexis 13 at *2-3 (ALJ 2002)).

2. Reason for Reconsideration. Reconsideration of the Order is necessary for the simple reason that it cannot be done consistent with the health of Respondent's Counsel, in particular that of Mr. Jeffrey, the experienced litigator in our two-lawyer firm. We believe that this consideration is more compelling than the claim of travel and other people's work on other matters that was the basis for Complainant's extension.¹

Mr. Jeffrey suffers from multiple chronic conditions. As a matter of privacy we will not detail those illnesses, other than to say that one is an autoimmune disorder. If need be, he will explain further in an *in-camera* submission. The consequence, however, is that he limits his working hours to a range of 15-20 hours per week.

¹ We also must respectfully point out that although Counsel for Respondent has indeed already begun work on responsive filings, it is necessarily at a disadvantage because, although it can guess, it cannot anticipate all the matters to which it must respond. And of course it has no way to respond to Complainant's proposed findings of fact. We expect Respondent's three filings to be rather substantial, likely exceeding 100 pages collectively.

3. The Proposed Extension of the Schedule. As stated in Respondent's reply to Complainant's Motion for extension, Respondent seeks a 12-day extension until June 14, 2023, which obviously pales in comparison to the multiple extensions Complainant has received for both the production of discovery responses and the briefing.² We cannot say for sure that Respondent will not need to file a subsequent motion seeking a further extension, given Mr. Jeffrey's health and the press of other work, but believe we can probably prepare the brief by then.

We note that the Order correctly points out that Respondent previously agreed with a briefing deadline of June 2, 2023. Motion to Compel Production of Documents (January 30, 2023). We do not know what we were thinking at the time, or if we properly calculated the gap, but that schedule would have been even less possible than the current schedule and would also have required revision.

We also apologize for a typo in our Reply to the Motion where it states that Mr. Jeffrey will be traveling on May 22. The correct end date is May 21, 2023, as previously reported.

² Although we dispute the implication that Complainant has sufficiently responded to discovery requests (Order at 3), as instructed by the Presiding Officer, Respondent will address Complainant's discovery deficiencies in its brief and related filings.

Conclusion

For the foregoing reasons, Respondent urges the Presiding Officer to reconsider the Order and to extend the schedule as requested in Complainant's Motion.

Dated: April 3, 2023

Respectfully submitted,

By: /s/ *Rebecca A. Fenneman*
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CERTIFICATE OF SERVICE

I certify that on the 3rd day of April, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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